

25STCV14628 25STCV14628

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV14628 Hearing Date: July 2, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 19

Tentative

Ruling

25STCV14628

LARRY

GENE BRENT, TRUSTEE OF THE LARRY GENE BRENT TRUST vs BEATRICE BRENT, AN
INDIVIDUAL AND TRUSTEE OF THE BEATRICE BRENT LIVING TRUST DATED JUNE 19,
2024, et al.

July

2, 2026

8:30

AM

NATURE OF PROCEEDINGS:

MOTION OF PLAINTIFF LARRY GENE BRENT, TRUSTEE OF THE LARRY GENE BRENT TRUST, TO
APPOINT APPRAISER TO DETERMINE FAIR MARKET VALUE UNDER PARTITION OF REAL

PROPERTY ACT.

RULING:

The Court grants the Motion
as prayed.

The Interlocutory Judgment of Partition and
Appointment of Referee, filed June 2, 2026, is deemed filed this date.

Plaintiff to give notice.

I.

BACKGROUND

On May 19, 2025, LARRY
GENE BRENT, TRUSTEE OF THE LARRY GENE BRENT TRUST (Plaintiff) filed a Partition
Complaint against BEATRICE BRENT, an individual and Trustee of The Beatrice
Brent Living Trust dated June 19, 2024; et al. (Defendants),

Plaintiff seeks a Partition
of the following adjacent properties: 1) a multi-family residence located at
2404 – 2406 East 112th Place, Los Angeles, CA 90059, Assessor's Parcel Number
6067-018-028; 2) a single-family residence located at 2408 – 2410 East 112th
Place, Los Angeles, CA 90059, Assessor's Parcel Number 6067-018-037; 3) a
multi-family residence located at 2414 East 112th Place, Los Angeles, CA 90059,
Assessor's Parcel Number 6067-018-023; and 4) a single-family residence located
at 2416 East 112th Place, Los Angeles, CA 90059, Assessor's Parcel Number
6067-018-020.

Generally, Plaintiff
seeks to end coownership of the real properties with co-owners BEATRICE BRENT and
MAUDINE CLARK BRENT, since the parties have been unable to agree to resolving
Plaintiff's ownership interest.

On July 15, 2025,
Defendant BEATRICE BRENT filed an Answer.

On January 8, 2026,
Plaintiff filed a Request for Dismissal of Defendant DR. BARRY F. SILVERMAN,

M.D. Likewise, Clerk of the United States District Court, Central District of California has been dismissed.

On January 16, 2026, the Court Clerk filed the most recent Notice of Rejection of a Request for Entry of Default filed in a string of similar requests.

On May 27, 2026, Plaintiff filed a renewed Motion to appoint an appraiser to determine fair market value, under the Partition of Real Property Act (PRPA) (Code Civ. Proc. § 874.316, subd. (a).) The Motion is combined with a request for an Interlocutory Judgment of Partition.

The Court's official docket shows that Defendants have filed no Opposition.

II.

LEGAL STANDARD

An action to partition property is a proceeding in equity involving judges' broad, equitable power to fashion any appropriate remedy. (Zarrahay v. Zarrahay (1988) 205 Cal.App.3d 1, 4-5.) Courts must follow statutory procedures for partition actions, unless errors were not prejudicial, such as by not affecting the result. (See Cummings v. Dessel (2017) 13 Cal.App.5th 589, 601-602.)

"[A]n interlocutory judgment in a partition action is to include two elements: a determination of the parties' interests in the property and an order granting the partition. (§ 872.720, subd. (a).) Second, the manner of partition—i.e., a physical division or sale of the property—is to be decided when or after the parties' ownership interests are determined, but not before. (Ibid.)" (Summers v. Superior Court (2018) 24 Cal.App.5th 138, 143. ["trial court's ruling here failed to satisfy these elements because it ordered the property to be sold before the parties' interests were resolved."].) "Any interest of a party in the property may be put in issue, tried, and determined. (C.C.P. 872.610.) In addition, the court must resolve any other issue necessary to ascertain the state of the title for the purpose of granting relief. (C.C.P. 872.620.) However, interests of unknown parties may be considered together and not as between each other. (C.C.P. 872.640.)" (12 Witkin, Summary 11th Real Prop § 70 (2024).) "At or after the trial (supra, § 70 et seq.), the court may

prescribe any manner, terms, and conditions of sale not inconsistent with the partition statute. (C.C.P. 873.610(a).) Before doing so, the court may ask the referee for a recommendation which, however, can be approved only on noticed motion. (C.C.P. 873.610(b).) This supervisory power of the court extends not only to the aspects of sales that the partition statute expressly entrusts to court supervision (see C.C.P. 873.620 et seq.),..." (Ibid., § 78.)

The elements of the Cause
of Action for Partition, are the following:

Property
description;

plaintiff's
property interests;

other persons'
claimed interests in the property that plaintiff reasonably believes the
action will materially affect;

the estate for
partitioning and a prayer for partitioning those interests; and

facts
justifying any sought sale of the property.

(Code Civ. Proc., § 872.230.)

III.

ANALYSIS

Plaintiff seeks an Interlocutory
Judgment of Partition of Properties. Additionally, Plaintiff requests that the
Court appoint Matthew L. Taylor as Appraiser, to appraise the subject properties.

Plaintiff explains the
bases for the requested Interlocutory Judgment, as follows:

A

default was entered against Defendants Beth Wilson, an individual; Alicia

Flores Chavana, an individual; Enrique Flores; and Defendant Maudine on January 2, 2026 and a default was entered against the Testate and Intestate Successors of Leon Thomas Brent, Deceased, and All Persons Claiming By, Through, Or Under Said Decedent; All Persons Unknown Claiming Any Interest in the Property; H.D. Remodeling, an entity of unknown form on January 16, 2026 ("Defaulted Defendants") (RJN, Exs. 4-10.) As to the Defaulted Defendants this Motion requests a default judgment.

As

to the non-defaulted Defendant Beatrice, and to the extent any defaulted defendant attempts to set aside the default, this Motion requests a judgment as "the complaint states facts sufficient to constitute a cause ...of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint." Code Civ. Proc. § 438(c)(1)(A).

(Motion, 3:8-18.)

Courts may appoint a referee, "to perform the actual partitioning of the property whether by division,³ by sale,⁴ or by appraisal...." (48 Cal.Jur.3d Partition § 69.)

The UPHPA contemplates that cotenants be subject to default judgments, as indicated by requiring that courts conducting partitions in kind allocate property as to cotenants "that are unknown, unlocatable, or the subject of a default judgment." (Id., § 874.318, subd. (d).) (Underscoring added.)

Default Prove-ups could involve live testimony regarding real property interests and publication service. (E.g., Code Civ. Proc., §§ 764.010, 585, subd. (c); Nickell v. Matlock (2012) 206 Cal.App.4th 934, 947 ["section 764.010 precludes a traditional default prove-up in quiet title actions and imposes an absolute ban on a 'judgment by default' in such actions."]; Carr v. Kamins (2007) 151 Cal.App.4th 929, 937 [default entry and judgment after evidentiary hearing, error, where publication-service requirements were unsatisfied, and no notice reasonably calculated to inform parties].)

" 'Motions by a plaintiff

for judgment on the pleadings, which are less common, are the equivalent of a demurrer to an answer, and the standard of review is obverse: the appellate court will assume the truth of all facts properly pleaded in the answer and will disregard the controverted allegations of the complaint'.... Such a motion 'must be denied if the defendant's pleadings raise a material issue or set up affirmative matter constituting a defense.' " (Engine Manufacturers Assn. v. State Air Res. Bd. (2014) 231 Cal.App.4th 1022, 1034.) A court did not commit error in granting judgment on the pleadings as to affirmative defenses. (Chacon v. Litke (2010) 181 Cal.App.4th 1234, 1258.)

The failure to file a proper and timely opposition in trial court creates a waiver of the issues on any appeal. (Bell v. Am. Title Ins. Co. (1991) 226 Cal.App.3d 1589, 1602; Cabrini Villas Homeowners Assn. v. Haghverdian (2003) 111 Cal.App.4th 683, 693.)

Here, the Court finds and concludes that Plaintiff satisfactorily supports requested relief based upon default entries, together with the unopposed Motion for Judgment on the Pleadings (JOP) addressing the filed Answer.

IV.

CONCLUSION

The Court grants the Motion, as prayed.